

Court No. - 3

Case :- WRIT - C No. - 9347 of 2022

Petitioner :- Vidhya Devi

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Vijay Mani Tiwari

Counsel for Respondent :- C.S.C.,Sunil Kumar Dubey

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard Sri Vijay Mani Tiwari, learned counsel for the petitioner, learned Standing Counsel for the State-respondent and Sri Vikash Rastogi, Advocate holding brief of Sri Sunil Kumar Dubey, learned counsel for the respondent no.2.

This writ petition has been filed praying for the following reliefs:

"(i) Issue a writ order or direction in the nature of certiorari quashing the impugned recovery certificate dated 25.02.2022 issued by the respondent no.3 and impugned demand notice dated 18.01.2022 issued by the respondent no.2 of amounting Rs. 2,58,156/- (Annexure nos. 8 and 9 to the writ petition) respectively against the petitioner for recovery of remaining electricity bill of the Consumer No. KR72010068105, Account No. 781723131192.

(ii) Issue a writ order or direction in the nature of mandamus commanding the respondents not to take any coercive action against the petitioner in pursuance of the impugned recovery certificate dated 25.02.2022 issued by the respondent no.3 and impugned demand notice dated 18.01.2022 issued by the respondent no.2 of amounting to Rs. 2,58,156/- respectively against the petitioner for the recovery of remaining electricity bill of the Consumer No. KR72010068105, Account No. 781723131192."

Learned counsel for the respondent No 2/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is ***disposed off*** giving liberty to the petitioner to submit his/ her objection under ***Para 6.5 of U.P. Electricity Supply Code, 2005*** before the respondent No.2 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 18.5.2022

T.S.